

Subject: Correction of Misstatement of Law – Contents Cleaning Regulation under 16 TAC § 78
Date: Sunday, November 9, 2025 at 9:16:05 PM Central Standard Time
From: katie@copelandlawtexas.com
To: Michelle Sortor
CC: Glynis Zavarelli, Brochstein, Amye, claimmail@phly.com, Lile Benaicha
Priority: High

Dear Ms. Sortor,

Your November 7, 2025 correspondence asserts that “contents cleaning is not a regulated activity under the Texas Mold Assessment and Remediation Rules / 16 TAC § 78.” This assertion is demonstrably contradicted by the official project documents in Plaintiffs’ possession and raises significant professional-conduct concerns.

1. Filed MAC Protocol Directly Contradicts the Assertion.

The Mold Assessment Consultant (MAC) Protocol, *Weinstein-090225 (Remediation Protocol Date: September 8, 2025)*, expressly incorporates contents handling and cleaning as part of the regulated remediation project. Section 4.2 (“Cleaning Procedures”) states:

“CONTENTS: Pack-out and clean contents according to Table 2: EPA Cleanup Methods at the end of this document.”

The protocol confirms that the overall remediation area exceeds 25 square feet, triggering mandatory state notification and adherence to the MAC protocol under **16 TAC §§ 78.110–78.150**. Consequently, all steps described within the protocol—including *contents cleaning*—form part of the regulated scope of work subject to the Mold Assessment and Remediation Rules (TMARR).

2. Misrepresentation of Law to an Opposing Party.

When a licensed MAC includes specific cleaning methodologies (such as EPA Table 2 methods) in a TDLR-filed remediation protocol, those actions become regulated under the TMARR framework. Your categorical denial that any regulation applies seeks to nullify the MAC’s binding directives and to deprive me of the statutory protections afforded to occupants whose property has been declared contaminated. Such a statement is contrary to the text of the filed protocol and the governing rules.

Knowingly or recklessly misstating the law to an opposing party constitutes conduct involving dishonesty and misrepresentation under Texas Disciplinary Rules of Professional Conduct Rule 4.01(a) (Truthfulness in Statements to Others).

Accordingly, your suggestion that I am personally responsible for paying for and removing contaminated property because the process is “unregulated” rests on a false

premise. I again demand written confirmation that **all items will be handled in accordance with the MAC's mandatory cleaning procedures in the Weinstein-090225 Protocol.**

3. Documented Violations of the Existing Protocol.

The record already establishes multiple departures from the governing remediation protocol and TDLR standards, including:

These actions violate the filed MAC protocol, **Tex. Occ. Code § 1958.001(6)** (defining remediation to include “removal, cleaning, and disposal of mold-contaminated materials”), and **16 TAC §§ 78.150–.154** (requiring adherence to the consultant’s plan and proper recordkeeping). Such deviations create contamination spread and spoliation risk that remain the responsibility of Weinstein and its insurer.

- Removal of contents from the apartment **without a licensed MRC present or contents-specific containment in place;**
- Storage of contaminated materials in **uncontrolled, unlicensed off-site locations** contrary to the MAC’s directive for pack-out and cleaning under EPA Table 2 methods;
- Failure to maintain **chain-of-custody documentation or photographic inventory;** and
- Representation to the Court that remediation was “continuing,” while **no clearance certificate or post-remediation verification exists.**

4. Continuing Obligation to Provide Safe, Habitable Housing.

Plaintiffs’ own filings and admissions confirm that the premises remain under active remediation and unfit for occupancy. **Weinstein Management and its insurer remain responsible for maintaining safe, alternative housing accommodations.** Terminating that housing violates the Fair Housing Act, implied warranty of habitability, the duty to mitigate foreseeable harm, and the insurer’s duty of good faith and fair dealing once liability has become reasonably clear.

Please confirm by return correspondence that (a) remediation activities will henceforth comply fully with the MAC protocol and TMARR standards, and (b) housing coverage will remain in effect until full clearance is obtained and contents are released accordingly.

If these misstatements and violations are not corrected, this correspondence will be submitted as further evidence of bad faith, regulatory non-compliance, and professional misconduct in the pending motions for sanctions and disqualification.

Ms. Brochstein and Ms. Benaicha,

Your continued inaction in the face of documented misconduct and bad-faith dealings does not absolve you of responsibility—it implicates you in it. By remaining silent when the law demands intervention, you move from observer to participant. I have exhausted every reasonable avenue for voluntary compliance. If you persist in disregarding your statutory and ethical duties, I will seek judicial intervention to ensure accountability for the harm already done and the harm still occurring.

Please confirm by 12:00 p.m. tomorrow that safe, ADA-compliant accommodations have been arranged for me, my children, and dogs. Any further delay will be treated as willful disregard of your duties under the FHA and insurer's good-faith obligations.

Respectfully,

Kathryn Copeland

Attorney Pro Se

(817) 789-8498

Katie@CopelandLawTexas.com

This communication serves as formal notice that immediate relocation assistance is required under federal and state law. Absent confirmation by tomorrow, this correspondence will be submitted in support of emergency relief.

From: Michelle Sortor <msortor@wandzlaw.com>

Date: Friday, November 7, 2025 at 4:29 PM

To: katie@copelandlawtexas.com <katie@copelandlawtexas.com>

Cc: Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Contents Preservation, Licensing, and Chain-of-Custody (Unit 2145) — Immediate Confirmation Requested

Ms. Copeland –

As you are aware, since you have the Dallas Mold Protocol, there is no “contents” cleaning protocol, and there is no requirement or procedure for a mold assessment consultant (MAC) or mold remediation contractor (MRC) to conduct any contents cleaning, as contents cleaning is not a regulated activity under the Texas Mold Assessment and Remediation Rules/16 TAC § 78.

If you would prefer that your items (all items – those stored by Reign, those in the two storage rooms at the apartment complex, and the balcony items) be transferred to another vendor (storage company and/or company to clean the items) of your choice – and for which you will be responsible for paying – please let us know and we will facilitate same. Otherwise – Weinstein will contact Reign to see if they have capacity to arrange for movement of the items in the 4th floor storage unit (the apartment contents which remained in the apartment, and which were packed by Weinstein staff, pursuant to the Court's directive of October 2) to be moved to Reign, for cleaning by Reign. Please advise if you are agreeable to this, and advise when a Mold Assessment Consultant (retained and paid by you) will be there to inspect the items. We will

update you as to Reign's ability to move the items in the fourth-floor storage room to its facility.

With respect to the items stored in the storage room associated with your apartment unit and the balcony items, those will need to be removed by you as soon as possible since your lease has expired.

Neither the offer to transfer the items nor the offer to clean same constitute an admission by Weinstein as to liability and/or the existence of any particular alleged element of damage, and does not serve to avoid your obligations with respect to mitigation of damages.

Regards,

Michelle Sortor

Michelle S. Sortor
Wentz & Zavarelli, L.L.P.
3120 Sabre Drive, Suite 170
Southlake, Texas 76092

(469) 665 – 9100 – Telephone
(469) 262 – 2078 – Direct Line
(469) 665 – 9106 – Facsimile

From: katie@copelandlawtexas.com <katie@copelandlawtexas.com>

Sent: Thursday, November 6, 2025 9:04 PM

To: Michelle Sortor <msortor@wandzlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Cc: Amye.Brochstein@phly.com

Subject: Contents Preservation, Licensing, and Chain-of-Custody (Unit 2145) — Immediate Confirmation Requested

Importance: High

Dear Ms. Sortor and Ms. Zavarelli,

Please confirm by **4:00 p.m. tomorrow (Friday, Nov 7)**:

1. **Freeze:** No movement, opening, cleaning, or disposal of any contents taken from Unit 2145 (including on-site storage, balcony items, and items at Reign).
2. **Licensing:** Identify the **license numbers (MRC/MAC)** for every entity or person who has handled or proposes to handle these contents. Confirm that no work will occur except under a **MAC contents protocol compliant with 16 TAC § 78**.
3. **Locations & Inventory:** Identify all **locations and custodians** of my property; provide a **location-specific inventory** (photos acceptable) and any **chain-of-custody** documents.

4. **Access:** Agree to **MAC inspection and photo-documentation** before any handling or cleaning.
5. **Consolidation:** Agree to consolidate contents into one secure, climate-controlled location suitable for licensed contents remediation, pending protocol.

If this confirmation is not provided, I will file a **motion for preservation, protective order, and limited TRO** and seek fees and spoliation remedies. Your October 30 email threatening immediate removal and “legal remedies,” and acknowledging that Reign Restoration “is not a long-term storage facility,” underscores the urgency.

I’m sending this tonight so you have it first thing in the morning. I appreciate your prompt attention to ensure nothing is disturbed overnight.

Respectfully,
Kathryn Copeland
(817) 789-8498
Katie@CopelandLawTexas.com

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Date: Monday, November 3, 2025 at 11:28 AM
To: Michelle Sortor <msortor@wandzlaw.com>, Glynis Zavarelli <gzavarelli@wandzlaw.com>
Cc: Amye.Brochstein@phly.com <amyebrochstein@phly.com>
Subject: Re: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

Dear Ms. Sortor and Ms. Zavarelli,

Thank you for your message. I am not refusing to remove my belongings; I simply cannot do so safely or lawfully until a **licensed mold-remediation company** directs and clears the process in compliance with **16 TAC § 78**.

Please confirm that all items from Unit 2145, including balcony and storage contents, will remain **preserved and undisturbed** until that occurs. I have requested guidance from Philadelphia Insurance regarding next steps for licensed remediation and coverage coordination, and will await their direction.

Sincerely,
Katie Copeland
(817) 789-8498
K.M.Copeland@tcu.edu

(cc Amye Brochstein – Philadelphia Insurance Companies, for coverage awareness only)

From: Michelle Sortor <msortor@wandzlaw.com>

Date: Thursday, October 30, 2025 at 3:46 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>, Glynis Zavarelli
<gzavarelli@wandzlaw.com>

Subject: RE: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland:

The items in the storage room assigned to your previous apartment unit, the items in the 4th floor storage room (placed there on October 5 after repeated attempts to obtain direction from you over that weekend - and which were ignored), and the items on the balcony - need to be removed given the expiration of your lease term. Weinstein has advised that you failed to return you key fob, the storage room keys, and other access items (as required by the lease agreement), and as such, you continue to be able to access these items, so that you can move them out. If you contend that you cannot access the balcony items without entering the apartment unit (which as you know you have been ordered not to do), please advise and please provide authorization for the apartment maintenance staff to move those items into the storage room which is assigned to the apartment (not the 4th floor storage room). Please note: Weinstein's position is that given the expiration of the lease - all items that remain in the storage rooms and on the balcony are in violation of the lease agreement - **you must immediately remove all of your belongings from Weinstein property to avoid Weinstein seeking legal remedies available to it under the lease.**

With respect to the items which are located at the Reign facility, you have been made aware since October 3 that all of those can be returned to you (and this has been addressed on several other occasions as well). You did not respond to that information initially - but now it appears that you do not want the items returned at this time, and you do not want the items cleaned at this time (which as you are aware - when you have repeatedly requested no cleaning be done and requested assurance that it has not - you have been told repeatedly that no cleaning has taken place given your request that this not occur but that if you authorize the cleaning, this will be at no charge to you). You have also been previously advised that Reign is not a long-term storage facility. Therefore - you need to decide: do you want the items returned at this time (not yet cleaned) or do you want the items cleaned (and then returned to you). Your decision in this regard will dictate the logistics involved and as such, once you have provided that decision - we will update you as to the logistics associated with the choice you have made (and as you are aware- either choice require you to provide an address to which the items can be delivered).

With respect to the cleaning process - we do not have that specific information, as we are not mold remediators or property restoration professionals. We will request that Weinstein obtain information from Reign which provides insight to the process, and upon receipt, that information will be provided to you.

With respect to your questions regarding insurance matters, I previously told you that we were checking with Weinstein regarding whether there are other applicable insurance policies and to the extent such exist, those will be produced. Please note- we are not coverage attorneys and can provide no information or opinion as to coverage.

On a related matter- again, please produce the entirety of the renter's insurance policy you had with State Farm.

Finally: After the Temporary Restraining Order, your key was used to access the apartment unit, on October 7, 2025. After the Temporary Injunction was entered, your key was used to access the apartment unit, on October 21. As to each of these dates, please provide an explanation as to why you entered your apartment and/or permitted someone else to enter your apartment, using your key.

Regards,

Michelle Sortor

Michelle S. Sortor
Wentz & Zavarelli, L.L.P.
3120 Sabre Drive, Suite 170
Southlake, Texas 76092

(469) 665 – 9100 – Telephone
(469) 262 – 2078 – Direct Line
(469) 665 – 9106 – Facsimile

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Wednesday, October 29, 2025 2:12 PM
To: Michelle Sortor <msortor@wandzlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>
Cc: Amye Brochstein <Amye.Brochstein@phly.com>
Subject: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

Dear Ms. Zavarelli and Ms. Sortor,

I wanted to follow up to ensure there's clear understanding regarding my personal belongings from Unit 2145.

As I understand it:

- Reign Restoration currently has custody of the items that were packed and removed from my apartment, and they have held off on any cleaning or remediation pending my authorization. (I might be inclined to authorize it, but I've been waiting for a response regarding how that

process works.)

- There are also remaining items stored on-site, as well as some belongings still on my balcony and in a separate storage unit that was already in my name.

Because the apartment and its contents have been declared contaminated, I need written assurance that none of my belongings will be cleaned, moved, altered, or disposed of without my explicit consent or a court order. I also need confirmation that all storage arrangements are secure and under proper environmental conditions until I'm able to safely inspect or relocate the items.

Additionally, it's my understanding that Weinstein's insurance coverage may include contents, remediation, or storage-related protection for situations like this. Could you please confirm whether that coverage has been activated or whether a claim has been made, and if not, explain why?

I'm trying to make informed decisions about next steps, and having this clarity will help me move forward appropriately.

Thank you,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu